

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alondra Payan	Team: Squad #05	CCRB Case #: 202204432	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/07/2022 8:30 AM	Location of Incident: East 149th Street and Morris Avenue	18 Mo. SOL 1/7/2024	Precinct: 40		
Date/Time CV Reported Thu, 07/07/2022 12:07 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 07/07/2022 12:07 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Cristal Castano	12047	949218	040 PCT
2. PO Shawn Liriano	03658	951924	040 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Virgilio Reyes	03526	965837	040 PCT
2. PO Omar Bhuiyan	22511	957380	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Shawn Liriano	Abuse: Police Officer Shawn Liriano threatened § 87(2)(b) with the arrest of § 87(2)(b)	A . Complainant Uncooperative
B . PO Cristal Castano	Abuse: Police Officer Cristal Castano threatened § 87(2)(b) with the use of force.	B . Complainant Uncooperative
C . PO Shawn Liriano	Discourtesy: Police Officer Shawn Liriano spoke discourteously to § 87(2)(b)	C . Complainant Unavailable

Truncation Case Summary

Search IAs: 0

Contact complainant/victim IAs: 16

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 07/12/2022

Remarks Call #1: called § 87(2)(b) at § 87(2)(b). § 87(2)(b) could not speak because she was at the doctor. She agreed for a call back tomorrow at 11am.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 07/13/2022

Remarks Call #2a: called § 87(2)(b) at § 87(2)(b), call went to voicemail. The undersigned left a voice message with a call back number.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 07/13/2022

Remarks Call #2b: called § 87(2)(b) at § 87(2)(b). § 87(2)(b) provided more details about the incident. See detailed IA.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 07/14/2022

Remarks Call #3a: called § 87(2)(b) at § 87(2)(b), the call went to voice mail. The undersigned asked for a call back to schedule an interview and left a call back number.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 07/14/2022

Remarks § 87(2)(b) returned the undersigned's call (see IA 15). § 87(2)(b) agreed to be interviewed on 7/19 at 2pm.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 07/19/2022

Remarks Call #4: The undersigned called § 87(2)(b) to conduct a full interview. § 87(2)(b) could be heard engaging in conversation with someone in the background. The undersigned asked § 87(2)(b) if she would like to reschedule her interview if today was not a good time. § 87(2)(b) said yes and agreed to reschedule her interview for 7/22 at 2pm.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 07/22/2022

Remarks Call #5: called § 87(2)(b) at § 87(2)(b), for her scheduled interview. The call went straight to voice mail. The undersigned was unable to leave a voice message because the mail box was full.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 07/26/2022

Remarks Call #6: called § 87(2)(b) at § 87(2)(b). § 87(2)(b) agreed to be interviewed on 8/1 at 2pm.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 08/01/2022

Remarks Call #7: called § 87(2)(b) at § 87(2)(b), for her CCRB interview. § 87(2)(b) informed the undersigned she has been in talks with an attorney regarding the incident. The undersigned advised § 87(2)(b) to speak to her attorney before giving a statement to the CCRB. The attorney's name is § 87(2)(b) and can be reached at § 87(2)(b). § 87(2)(b) did not know the attorney's email.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 08/15/2022

Remarks Call #8: called § 87(2)(b) at § 87(2)(b). The undersigned asked for clarity on whether § 87(2)(b) has retained a lawyer. § 87(2)(b) said she has not. The undersigned asked if she wanted to give a statement. § 87(2)(b) said yes and agreed to be interviewed on 8/23/22 at 12pm.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 08/16/2022

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Remarks Call #9: called § 87(2)(b) at § 87(2)(b), the call went to voice mail. The undersigned left a voice message with a call back number to reschedule § 87(2)(b)'s interview.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 08/17/2022

Remarks Call #10: called § 87(2)(b) at § 87(2)(b), the call went to voice mail. The undersigned left a voice message with a call back number to reschedule § 87(2)(b)'s interview.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 08/23/2022

Remarks Call #11: called § 87(2)(b) at § 87(2)(b), the call went to voice mail. The undersigned left a voice message with a call back number to reschedule § 87(2)(b)'s interview.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 09/07/2022

Remarks Call #12a: called § 87(2)(b) at § 87(2)(b), § 87(2)(b) answered the call. The undersigned asked about rescheduling her interview and gave more context on the complaint. The call either dropped or § 87(2)(b) ended the call.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 09/07/2022

Remarks Call #12b: called § 87(2)(b) at § 87(2)(b). The call went to voice mail and the undersigned left a voice message with a call back number.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 09/09/2022

Remarks Call #13: called § 87(2)(b) at § 87(2)(b). The call went to voice mail and the undersigned left a voice message with a call back number.

Letters/Correspondence IAs: 1

Document List:

1st please call to c/v/w letter to Comp/Victim § 87(2)(b) Created 09-06-2022 by Alondra Payan

Letters/Correspondence IA created by: Alondra Payan on 09/06/2022

Remarks Emailed § 87(2)(b) 1st please call letter.

Civilian Interview Scheduled IAs: 4

Created by: Alondra Payan on 07/14/2022

Remarks § 87(2)(b) is scheduled for her CCRB interview on 7/19 at 2pm.

Created by: Alondra Payan on 07/19/2022

Remarks § 87(2)(b) rescheduled her interview for 7/22 at 2pm.

Created by: Alondra Payan on 07/26/2022

Remarks § 87(2)(b) rescheduled her CCRB interview for 8/1 at 2pm.

Created by: Alondra Payan on 08/15/2022

Remarks § 87(2)(b) is scheduled to be interviewed on 8/23 at 12pm.

Civilian Interview Missed IAs: 0

Truncation Report Remarks:

On July 7, 2022, § 87(2)(b) filed this complaint via the CCRB's online system.

§ 87(2)(b) was initially scheduled to be interviewed on July 19, 2022. During that interview, § 87(2)(b) was asked to reschedule due to her engaging in conversation with someone in the background. § 87(2)(b) rescheduled her interview for July 22, 2022. § 87(2)(b) missed that interview appointment. On July 26, 2022, during a call, § 87(2)(b) agreed to be interviewed on

August 1, 2022. On August 1, 2022, during her scheduled interview, § 87(2)(b) informed the undersigned she had retained a lawyer regarding her complaint. Two calls were made on August 15, 2022, to § 87(2)(b), the calls went unanswered. That same day § 87(2)(b) was called, and she informed she had not retained an attorney and agreed to be interviewed on August 23, 2022. Due to a conflicting schedule the undersigned had to cancel § 87(2)(b)'s interview. From August 16, 2022, § 87(2)(b) was called five times and emailed two times about rescheduling her interview. All calls and emails went unanswered.

§ 87(2)(g)
 it is therefore recommended that this case be closed as **complainant uncooperative**.

Squad No.: 5

Investigator:	Alondra Payan Mejia _____ Signature	Inv. Alondra Payan Mejia _____ Print Title & Name	September 16, 2022 _____ Date
Squad Leader:	Daniel Giansante _____ Signature	IM Daniel Giansante _____ Print Title & Name	September 17, 2022 _____ Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date

